

IN THE SUPREME COURT OF BANGLADESH  
HIGH COURT DIVISION  
(Special Original Jurisdiction)

**Writ Petition No.15521 of 2016**

**IN THE MATTER OF:**

An application under Article 102 of the Constitution of the People's Republic of Bangladesh.

-And-

**IN THE MATTER OF:**

Khandaker Assaduzzaman .....Petitioner.

**-V E R S U S-**

The Government of the People's Republic of Bangladesh, represented by the Secretary, Ministry of Land, Bangladesh Secretariat, Ramna, Dhaka and others

....Respondents.

Mr. Zainul Abedin Senior, Advocate with

Mr. Md. Towhidul Islam, Advocate

...For the petitioner No.1

Mr. Shariful Islam, Advocate

...For the co-petitioner Nos.2-3

Mr. S.M.Iftekhar Uddin Mahamud, DAG with

Mr. Mohammad Zeeshan Hyder, DAG

... ... For the Respondents.

**Present:**

**Mr. Justice Ashish Ranjan Das**

**And**

**Mr. Justice Fahmida Quader**

**Heard on: 29.08.2024 And Judgment on: 03.09.2024**

**Ashish Ranjan Das, J:**

On an application under Article 102 of the Constitution of the People's Republic of Bangladesh this Rule Nisi was issued on 07.12.2016, in the following terms:

*“Let a Rule Nisi be issued calling upon the respondents to show cause as to why inclusion of the land measuring an area 375 ajutangsha, part and parcel of S.A. Plot No. 1029 corresponding to R.S. Plot No.  $\frac{1237}{1681}$  under S.A. and R.S. Khatian No. 1834 and 2203 respectively under Mouza-*

*Matuail, P.S.-Demra, District-Dhaka in vested property Ka list (Annexure-D to the writ petition) of Matuail Mouza under Demra Police Station, Dhaka published on 02.05.2012 under serial No. 224 should not be declared to have been done without lawful authority and is of no legal effect and as to why they should not be directed to release the property in question from the impugned Ka list (Annexure-D to the writ petition) and/or pass such other or further order or orders as to this Court may seem fit and proper.”*

Facts, relevant for disposal of this Rule, in brief are that S.A. Khatian of the land in question was prepared in the name of Nironjon Mondal and others. One of the S.A. recorded tenants Joy Chandra Das @ Joy Chandra Mondal transferred 30 decimals of land out of S.A plot No.1029 under the said Khatian in favour of Sree Rama Nanda Das and others through Safkabla deed being No.8780 dated 07.12.1955. Purchasers Sree Rama Nanda Das and Sree Shama Nanda Das transferred their purchased land in favour of Begum Anowara Khatun and others through Safkabla deed being Nos.17039 and 5013 dated 22.11.69 and 15.04.69 respectively. In the last Mohanagar Survey Khatian No.700 was prepared in the name of Anowara Khatun and others. Anowar Khatun and others while owning and possessing their purchased land R.S khatian was prepared in their names and through their constituted attorney transferred the land in question in favour of the petitioner through Saf Kabla deed being No.1664 dated S.A. Khatian, 22.02.2007. That after his purchase the petitioner mutated his name in the Revenue Office and paid rent up to date. That due to his personal difficulties the petitioner appointed Mr. Abdul Latif Mrida as his constituted attorney through registered power of attorney being No.10386 dated 10.10.2016. That in the 1<sup>st</sup> week of November, 2016 the attorney of the

petitioner went to the local Tohshil Office to pay rent for the year 1422-1423 B.S, when concerned officer refused to accept rent on the ground that the land in question has been included in the 'Ka' schedule of vested property list. Thereafter, on search the attorney of the petitioner collected vested property 'Ka' list of Demra and found that the S.A plot in question was enlisted in list under serial No.224.

Being aggrieved by and dissatisfied with the land measuring an area of 375 ajutangsha, part and parcel of S.A plot No.1029 corresponding R.S plot No. 123f under S.A and R.S 1631 Khatian No.1834 and 2203 respectively under Mouza Matuail, P.S-Demra, District-Dhaka in vested property 'Ka' list of Matuail Mouza under Demra Police Station, Dhaka published on 02.05.2012 at serial No.224 the petitioner having no other alternative and efficacious remedy the petitioner filed. The instant writ petition before this Court and obtained this present rule and an order of status quo.

Mr. Zainul Abedin Senior Advocate with Mr. Md. Towhidul Islam the learned Advocate appearing on behalf of the petitioner submits that the petitioner has got knowledge about the impugned 'Ka' list within 1<sup>st</sup> week of November, 2016 from the local Revenue Office, whereas the last date for filing suit before the Arpita Smpatti prottarpan Tribunal was 31.12.2013 as per section 10 of the said Arpita Sampatti Prottarpan Ain. Now the petitioner has no forum for relief against the impugned list. He submits that the petitioner purchased his land from Anowar Khatun who was the R.S. recorded tenant by purchase and as per R.S. record property of Rama Nanda and others has been enlisted as vested property. As per R.S khatian property of the vendor of the petitioner has not been enlisted as vested property. The petitioner got possession in his purchased

land, mutated the same in the Revenue Office and paid rent on basis of his mutation khatian. Now the respondent after accepting rent from the petitioner cannot deny his title in the land in question. He again submits that the petitioner is in possession of the land mutating his name in the Revenue Office and on payment of rent. His possession has not been disturbed by the respondent in any way, therefore, before 1<sup>st</sup> week of November, 2016 the petitioner has no chance to have knowledge about the impugned vested property list. He further submits that on the basis of the purchased right and title of the petitioner in the meantime last Mohanagar Khatian prepared in his name without any objection from any quarter.

Mr. Shariful Islam, the learned Advocate appearing on behalf of the petitioner Nos. 2 and 3 submits that the suit land appertaining to the C.S. Khatian No. 1534 of Plot No. 1029 measuring an area of land has been recorded in the name of Gonga Charan Mondal and others. Subsequently, Gonga Charan Mondal died leaving behind 2(two) sons namely, (1) Joy Chandra Das @ Joy Chandra Mondal and (2) Profullah Mondal and they owned and possessed the land as heirs of Gonga Charan Mondal. He also submits that the S.A Khatian No.1834 of Plot No.1029 has been recorded in the name of Joy Chandra Das @ Joy Chandra Mondal, Profullah Mondal and others. They owned and possessed their portion of land as per oral Bonton Nama. Thereafter, Joy Chandra Das @ Joy Chandra Mondal sold and transferred 30 decimals of land out of C.S and S.A plot No.1029 under the said C.S and S.A Khatians in favor of Sree Rama Nanda Das and Sree Shemananda Das by a registered Deed of Sale being No. 8780 dated 07.12.1955 as evident from annexure A(i) to the writ petition. Accordingly Sree Rama Nanda Das and Sree Shemananda Das mutated their

names and paid khajna. Subsequently, Sree Shemananda Das sold and transferred 77 decimals of land including 15 decimals of land from the said C.S and S.A Plot No.1029 in favor of Begum Anwara Khatun and Anwar Ahmmad by a registered deed of sale being No.5013 dated 15.04.1969 as evident from annexure A(iii) to the writ petition. In the meantime, Sree Rama Nanda Das sold and transferred 77 decimals of land including 15 decimals of land from the said C.S and S.A Plot No.1029 in favor of Begum Anwara Khatun and Anwar Ahmmad by a registered Deed of Sale being No.17039 dated 22.11.1969. He further submits that said Begum Anwara Khatun and Anwar Ahmmad while owning and possessing the land in question, R.S. Khatian No. 2203 has been recorded in their names with others as evident annexure A(v) to the writ petition. Thereafter, total land measuring 63.29 decimals including the land in question has been recorded in City Jarip in plot No. 16067 and 16068 under City Jarip Khatian No.700 in the name of said Begum Anwara Khatun and Anwar Ahmmad. Said Anwar Ahmed executed a Foreign Power of Attorney dated 09.03.2004 in the NEWYORK Embassy of Bangladesh in favor of his father Dr. Ahmmad Ali which was attested on 16.05.2004 as Deed No. 382 by the Treasury Officer, Dhaka. In the meantime Anwara Khatun and Anwar Ahmed sold and transferred the land in question by a registered Deed of Sale being No.1664 dated  $\frac{22.02.2007}{25.02.2007}$  in favor of Khandaker Asaduzzaman. Thereafter, the writ petitioner No.1, Khandaker Asaduzzaman mutated his name by Mutation and Separation Case No. 9051 of 2011 dated 06.09.2011 as per City Jarip Record and opened mutation Khatian No.20146 in his name and paid Khajna accordingly. Lastly he paid khajna on 02.12.2020 till 1427 B. S.

He further submits that due to personal difficulties of the Petitioner No.1, Khandaker Asaduzzaman has appointed Mr. Abdul Latif Mrida as his constituted attorney by a registered Power of Attorney being No.10386 dated 10.10.2016. The petitioner No.1 by suppressing the instant writ petition and impugned 'Ka' list sold the property in question to the petitioner Nos. 2-3 by a registered Deed of Sale being No. 5026 dated 20.07.2017 through his constituted attorney, Mr. Abdul Latif Mrida and the petitioner Nos.2-3 have been owning and possessing the property in question by constructing side wall tin shed factory building and rented out the same. He also submits that the petitioner No.1 was in possession of the property in question from the date of his purchase and mutated his name and paid rent on the basis of his mutation khatian. Now the respondents after accepting the rent from the petitioner No.1 cannot deny the title of the petitioners and as such the property in question should be released from the impugned 'Ka' list for the ends of justice. The petitioner Nos.2-3 are the bonafide purchasers by investing huge amount of hard earning remittance, the writ petitioner by suppressing the impugned 'Ka' List and instant writ petition, sold the property in question to the petitioner Nos.2-3 and as such, the property in question should be released from the impugned 'Ka' list for the ends of justice. The petitioner Nos.2- 3 are in possession of the land in question by constructing side wall tin shed factory building and rented out the same, their possession has not been disturbed by the respondents in any way and as such, the property in question should be released from the impugned 'Ka' list for the ends of justice.

The petitioner Nos.2 and 3 purchased the land in question from the petitioner No.1 by a registered Deed of Sale being No. 5026 dated 20.07.2017 and the petitioner Nos.2 and 3 have been owning and possessing the land in

question by constructing side wall tin shed factory building and rented out the same but they cannot mutated their name in the concern Assistant Commissioner (Land), Office and as such he prays for direct the respondent No.3 to mutated the land in question in the name of the petitioner Nos.2 and 3 for the ends of justice.

Heard the learned Advocates, perused the writ petition, supplementary affidavit and annexures annexed herewith and other relevant documents.

Considering the facts and circumstances of the matter and the submission made by the learned Advocates for the petitioners, we are of the view that justice would be better served if there be clear title we direct the respondents to release the property in question from the impugned Ka list (Annexure-D) to the writ petitions.

In the result, the Rule is made absolute and the respondents are directed to release the property in question from the impugned Ka list (Annexure-D) to the writ petition) within 06(six) months from the date of receipt of this order.

There is no order as to cost.

Communicate the order at once.

**Fahmida Quader, J:**

I agree.